double jeopardy bar to appealability is automatically averted. Rather, we must inquire further into the constitutional significance of a Rule 29 (c) acquittal.

Perhaps the most fundamental rule in the history of double jeopardy jurisprudence has been that "[a] verdict of acquittal . . . could not be reviewed, on error or otherwise, without putting [a defendant] twice in jeopardy, and thereby violating the Constitution." *United States* v. *Ball,* 163 U. S. 662, 671 (1896). In *Fong Foo* v. *United States, supra,* for example, a District Court directed jury verdicts of acquittal and subsequently entered formal judgments of acquittal. The Court of Appeals entertained the appeal of the United States and reversed the District Court's ruling on the ground that the trial judge was without power to direct acquittals under the circumstances disclosed by the record. We reversed, holding that, although the Court of Appeals may correctly have believed "that the acquittal was based upon an egregiously erroneous foundation, . . . [n]evertheless, '[t]he verdict of acquittal was final, and could not be reviewed . . . without putting [the defendants] twice in jeopardy, and thereby violating the Constitution.'" 369 U. S., at 143. See also *Kepner* v. *United States, supra; United States* v. *Sisson,* 399 U. S., at 289–290; *Serfass* v. *United States, supra,* at 392. In applying this teaching of *Ball, Fong Foo,* and like cases, we have emphasized that what constitutes an "acquittal" is not to be controlled by the form of the judge's action. *United States* v. *Sisson, supra,* at 270; cf. *United States* v. *Wilson,* 420 U. S., at 336.[9] Rather, we must determine whether the ruling of the judge, whatever its label, actually represents a resolution, correct or not, of some or all of the factual elements of the offense charged.

There can be no question that the judgments of acquittal

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[9] The Court must inquire whether "the ruling in [defendant's] favor was actually an 'acquittal' even though the District Court characterized it otherwise." *United States* v. *Wilson,* 420 U. S. 332, 336 (1975).